

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

July 23, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on July 9, 2012. Motion (per Consent Agenda) carried.

Mr. Collins declared a conflict of interest (business interest) due to a voucher payable to Bicycle Station, Inc. and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Upon inquiry regarding a voucher payable to All Traffic Data Services Inc., Matt Ashby, Planning Services Director, advised services provided by the company involved a study initiated through the Metropolitan Planning Organization (MPO) for timing information on traffic signals. Upon inquiry, Dan White, City Attorney, provided information affiliated with a voucher payable to the Associated Legal Group, LLC, pertaining to legal costs for litigation of the eminent domain matter involving the Hollywood Video property. Upon inquiry, Mr. Ashby advised a voucher payment for a Dale Carnegie Course was an MPO expenditure for employee training on communication and public relations/interaction skills. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Collins returned to Council Chambers.

Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established and Section 5.1.3 Official Zoning Map (Cheyenne City Map), of the Unified Development Code, changing the zoning classification from MUR Mixed Use with Residential Emphasis District to MUB Mixed Use with Business Emphasis District for the South ½ of Lot 1, the West 5.72 feet of the North 66 feet of Lot 1, all of Lots 2, 3 and 4, Block 201, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of Warren Avenue and E. 23rd Street). Jan Nelson Schroll expressed concerns regarding the proposed zone change and encroachment of commercial activities in residential neighborhoods, particularly historic neighborhoods. Randy Byers, The Design Studio, architectural firm representing the applicant, Meridian Trust Federal Credit Union, clarified the zone change request will more closely reflect the business environment use already present on the block. He briefly reviewed the credit union's business history at the location and current zoning in the vicinity,

planned site enhancements involving improved access for safety to the drive-up facility and ownership of lots within the block by the credit union. He clarified the property involved in the proposed zone change was not within a historic district. Reporting for Public Services Committee, Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting “yes” - all members of the governing body with the exception of Mr. Allen voting “no”.

[CA] RESOLUTION - Authorizing a street name change from Archer Service Road to Hutchins Drive for the portion of the former I-80 Service Road located East of Industry Drive and South of Campstool Addition, 1st and 3rd filings, to the City of Cheyenne, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#5412)

RESOLUTION - Adoption of the Cheyenne Metropolitan Area On Street Bicycle Plan and Greenway Plan update. Sreyoshi Chakraborty, MPO Office, provided information on compilation of the proposed plan which involved an 18 month planning and data driven process; vision for the health, safety and welfare needs of the community involving safer bike routes and connectivity; communication and coordination of the plan’s development through an advisory committee and local, county, state and city agencies and staff; public meetings that had been held and surveys conducted, and plan correlation with the 2005 Cheyenne Transportation Master Plan. Jeff Wiggins, Parks and Recreation Department, discussed the safe routes to school program and commented on the plan being a guide for short and long range planning representing a unified vision for the community. He provided information on the Greenway Plan update; advised the draft plan as well as the final draft has been available for public review on the City’s website throughout the process, and commented on the plan providing identification of safer bike routes. Dick Krahenbuhl, Greenway Advisory Committee member, spoke in favor of the On Street Bicycle Plan and its attributes in reflecting foresight, planning and commitment to the future of Cheyenne, noting the plan is not a construction document. Frank Cole commented on his concerns with the plan as follows: County Planning Commission has not yet acted on the plan, accessibility to the Greenway by all persons in all conditions, need to review City laws relative to motorized assistive vehicles on the Greenway (i.e. motorized bicycles and wheelchairs), and path connectivity involving the area near Converse Avenue and Ogden Road. Jeff Moench spoke in support of the plan as a valuable resource for the community. Todd Feezer, Assistant Director, Parks and Recreation Department, reviewed recent successes in acquiring funding through grants and donations for assistance with pre-planning and construction of projects, noting the current Holliday Park Greenway Connector Project and Paul Smith’s Children’s Village in Lions Park. He explained an on-street bicycle plan is the safest way to convey bicyclists into areas where a Greenway path is not available, and commented that acquiring property for Greenway path extensions is becoming harder to achieve. Ms. Ash reported there was no recommendation on the item from Public Services Committee. Ms. Ash moved to adopt, seconded by Ms. Broyles. Discussion followed on safety concerns involving vehicular drivers and bicycle operators and level of knowledge and experience in sharing roadway environments; shared lane markings; bicycle parking requirements for new or re-development projects, and having a conceptual document in place to assist with opportunities to seek potential grant funding to help with future implementation of the plan. Staff and bicycle advisory committee participants were commended for their efforts in developing the plan. Motion carried. Voting “yes” -- all members of the governing body. (#5413)

RESOLUTION - Authorizing the Mayor and City Clerk to sign a Final Plat for Worldwide Subdivision, a portion of the NE¼ NE¼ of Section 11, T.13N., R.67W., of the 6th P.M., Cheyenne, Wyoming (located at the I-25/I-80 interchange). Ms. Ash moved to adopt with staff recommendations

#2 and #3, seconded by Dr. Rinne. Motion carried. Voting "yes" -- all members of the governing body. (#5414)

[CA] RESOLUTION - Authorizing the Mayor and City Clerk to sign a Final Plat for Campstool Addition, Fourth Filing, situate in portions of the NE¼ of Section 31 and the NW¼ of Section 32, T.14N., R.65W., 6th P.M., and a replat of a portion of Campstool Addition, First Filing, Cheyenne, Wyoming (located north of and adjacent to I-80 Service Road, east of Industry Road and south of Venture Drive). Motion (per Consent Agenda) carried. (#5415)

RESOLUTION - Authorizing a special use approval for a creative sign program for Block 392, Original City, Cheyenne, Wyoming (The Dinneen Block located on Lincolnway between Pioneer and Thomes). Randy Byers, The Design Studio, architectural firm working with the applicant (Dinco Development, LLC), provided information on proposed conditions offered by the developer (i.e. applicant), instead of recommended staff conditions, during discussion on the item at Public Services Committee. It was confirmed that members of the governing body had received a copy of the developer's proposed conditions. Ms. Ash moved to adopt, seconded by Ms. Broyles. Ms. Ash moved to amend by using Dinco Development, LLC conditions instead of City staff conditions #1 through #4, seconded by Ms. Broyles. Mr. Byers clarified the revisions offered by the developer included 5 recommendations. Comments followed regarding the Dinneen Block project and the developer's financial commitment to the downtown through project area improvements; concern with staff conditions that had been proposed; support for the developer to be able to proceed with their proposed signage and landscaping plans; developer's request for unique signage, and clarification of the pending motion and the number of developer conditions proposed. Upon inquiry, Mayor Kaysen verified the motion on the floor was to amend by using the developer's conditions as proposed. Brandon Cammarata, Planning and Development Director, clarified this special use would allow for creative signage affiliated with a redevelopment project that would not otherwise be allowed, and stated staff has reviewed the developer's conditions and supports the same. Mr. Byers provided information involving the unique aspects of one of the signs, which will be used as a screening and support structure for the downtown 17th Street Pedestrian Lighting and Beautification Project. He stated electrical equipment to be installed will provide sufficient power for anticipated downtown events and activities. Motion to amend carried. Voting "yes" -- all members of the governing body with the exception of Ms. Ash voting "no". Main motion as amended carried. Voting "yes" -- all members of the governing body. (#5416)

[CA] RESOLUTION - Adopting a Schedule of Application Fees, Initial License Fees and Renewal License Fees for certain new classifications of City of Cheyenne Contractor Licenses and Building Trade Licenses -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne has agreed on County Projects to be submitted to the State Loan and Investment Board for the 2013-2014 Countywide Consensus Block Grant Funding -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne is in agreement on a Garage Project for the Town of Burns to be submitted to the State Loan and Investment Board for the 2013-2014 Countywide Consensus Block Grant Funding -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] Contract between the City of Cheyenne, Police Department Victim Witness Program, and the State of Wyoming, Division of Victim Services, for services to victims of crime (Victim Services grant). Motion (per Consent Agenda) carried. (#5889)

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and William Linden, for crime victim assistance services (Victim Services grant). Motion (per Consent Agenda) carried. (#5890)

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Brenda Johnson, for crime victim assistance services (Victim Services grant). Motion (per Consent Agenda) carried. (#5891)

[CA] Contract Employment Agreement between the City of Cheyenne, Police Department, and Leslie Burch, for crime victim assistance services (Victim Services grant). Motion (per Consent Agenda) carried. (#5892)

[CA] Contract Modification No. 2 to Contract No. 5414 between the City of Cheyenne and Clean Harbors Environmental Services, Inc., for Hazardous Waste Disposal Services, Cheyenne Household Hazardous Waste Facility -- referred to Finance Committee.

Consideration of Bid #M-23-12 for contracts between the City of Cheyenne and Inman Roofing, Inc., Cheyenne, Wyoming, and Weathercraft Company, Scottsbluff-Gering, Nebraska, for Roof Replacement at Municipal Building and Civic Center (SLIB-12 funding). Reporting for Finance Committee, Mr. Brown moved to accept the bid submitted by Inman Roofing, Inc. in the amount of \$138,229.00, and the bid from Weathercraft Company in the amount of \$27,720.00, for a total bid amount of \$165,949.00, seconded by Mr. Spiker. Mr. Brown moved to amend by substitute contracts to accept the bid from Inman Roofing, Inc. in the amount of \$192,035.00, and the bid from Weathercraft Company in the amount of \$80,975.00, for a total bid amount of \$273,010.00 with additional funding of \$107,010.00 to be transferred from general fund reserves, seconded by Mr. Pierson. It was explained that the initial total bid amount would only be enough funding, as received from the State Land and Investment Board program, to replace certain segments of the roof, and that the proposed amendment, utilizing reserves, would enable all of the roof work to be completed at the same time. It was noted there are several roof problem areas that need to be fixed. Motion to amend carried. Voting "yes" -- all members of the governing body. Upon inquiry, Jim Elias, Public Works Director, stated that with staff oversight they will be able to identify specific areas of the roof that each company works on relative to any warranty issues. Main motion as amended carried. Voting "yes" -- all members of the governing body. (#5893/#5894)

[CA] Consideration of Bid #M-24-12 for a contract between the City of Cheyenne, Engineering Department, and Modern Electric Co., Casper, Wyoming, for Ridge Road Traffic Signal Replacement Project. Motion (per Consent Agenda) carried. (#5895)

[CA] Consideration of Bid #M-1-13 for a contract between the City of Cheyenne, Engineering Department, and Kolbe Striping, Inc., Castle Rock, Colorado, for 2012 Epoxy Striping Project (2007-2010, 2011-2014 1% Sales Tax) -- referred to Finance Committee.

Restaurant liquor license application filed with the City Clerk's Office for 2 Doors Down 2, Inc. d/b/a 2 Doors Down 2, 1802 Dell Range Boulevard, Suite 2, Cheyenne, Wyoming. To avoid any perception of conflict involving a business relationship with the applicant, Mr. Spiker declared a conflict of interest and vacated Council Chambers. Mr. Brown moved to approve, seconded by Mr. Collins. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers.

Re-Appointment of Jeannine R. Stallings to the Cheyenne Public Transit Advisory Board. Mr. Pierson moved to approve, seconded by Mr. Collins. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

[CA] Annual Report to the City of Cheyenne regarding capital improvements made at the Airport Golf Course as required by Lease Agreement -- referred to Finance Committee.

Announcement of Appointments of Scott French and Amiee Reese to the Visit Cheyenne Board to be confirmed August 13, 2012.

Under other business, William Overling expressed concerns regarding the Cadillac Ranch Bar and its business effect on his neighborhood, citing problems with noise, parking, debris, vandalism and pedestrian safety, and the process for approving noise permits when dealing with excessive noise. He suggested City Council consider utilizing EPA guidelines for establishing an excessive noise program. Mr. Overling further commented on the following topics: Limiting noise permits under certain conditions and situations that involve events and activities to be held near residential neighborhoods, suggested applications for permits be reviewed and approved through the City Council meeting process; concern with City Council approval of certain types of liquor licenses for business locations that are in close proximity to residential areas, and providing special parking areas (with permits) designated for residents in mixed use commercial/residential areas. He thanked the Police Department and elected officials for their assistance in responding to his neighborhood concerns. It was advised there are some existing special residential parking areas, pursuant to City Code, within the City.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:18 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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